

EC067583 EC067583

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-06-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CD%2C06%2F26%2F2026

Source SHA-256: 773ff66b6c8f279e6f93ca28b25c69516922dc32ae89c382d5f9b314327fc524

Case Number: EC067583 Hearing Date: June 26, 2026 Dept: D

TENTATIVE RULING

Calendar: 3

Date: June 26, 2026

Case No: EC 067583 Trial Date: August 30, 2027

Case Name: Pointe Assets, LLC v. Benson Industries, Inc., et al.

MOTION TO BE ADMITTED PRO HAC VICE

[CRC rule 9.40]

Moving Party: Defendants, Quanex I.G. Systems, Inc. and Truseal Technologies, Inc.

Responding Party: Plaintiff, Pointe Assets, LLC

RELIEF REQUESTED:

Order permitting J. Curtis Greene to appear in this action and be admitted to the bar of this Court pro hac vice.

CAUSES OF ACTION: from Complaint

1) Breach of Intended Third Party Beneficiary Contract

2) Negligence

3) Strict Products Liability

4) Breach of Express and Implied Warranty

5) Negligence

6) Strict Products Liability

7) Concealment

8) Negligence

9) Strict Products Liability

SUMMARY OF FACTS:

Pointe Assets, LLC, ("Plaintiff") the successor in interest to Catalina Media Development, LLC ("CMD"), alleges that CMD owns real property in Burbank, commonly referred to as "The Pointe," an office building and parking garage. Plaintiff alleges that in early 2006, Plaintiff entered into an agreement with Krismar Construction Co. concerning construction of The Pointe, which, in turn, for the benefit of CMD, entered into a subcontract with defendant Benson Industries, Inc. ("Benson") to design and build an exterior curtain wall glazing system. Benson then hired for the benefit of CMD, defendant Viracon, Inc. ("Viracon") which manufactured and supplied certain IG Units for the curtain wall glazing system. Plaintiff alleges that a sealant for the system, PIB, was manufactured and supplied to Viracon by defendants Quanex I.G. Systems, Inc. ("Quanex") and/or Truseal Technologies, Inc. ("Truseal").

Plaintiff alleges that the project was substantially complete in April of 2009, but in April of 2016, a tenant notified CMD's property manager of a dirty window. It was then discovered that the problem was not dirt, but film formation comprised of PID forming between the panes of glass in the sealed IG units, so that there is no way to clean the film formation or repair the PIB without damaging the IG Units and the exterior curtain wall glazing system. The pleading alleges that Benson acknowledged in the subcontract that CMD is a third-party beneficiary of that contract.

ANALYSIS:

California Rules of Court ("CRC") rule 9.40 provides that an attorney in good standing in another jurisdiction may apply to appear pro hac vice in this State by way of written application upon due notice to all interested parties, as well as service on the State Bar in San Francisco with payment of the appropriate fee, provided that the attorney (a) is not a California resident, (b) does not work in California, and (c) does not perform regular or substantial business, professional or other activities in California.

An application for pro hac vice admission must set forth: (1) the applicant attorney's residence and office addresses; (2) the courts to which the applicant attorney has been admitted and dates of admission; (3) a representation that the attorney applicant is a member in good standing in the courts of admission and is not currently suspended or disbarred in any court; (4) the title of each court and action in which the applicant attorney has appeared pro hac vice in this State in the prior two years; and (5) the name, address and phone number of the active California State Bar member with whom the applicant is associated. (CRC, rule 9.40(d).)

Upon review, the Court finds that Greene has established that he satisfied the requirements to appear as counsel pro hac vice pursuant to CRC rule 9.40.

The Application sets forth (1) the applicant attorney's residence and office addresses; (2) the courts to which the applicant attorney has been admitted and dates of admission; (3) a representation that the attorney applicant is a member in good standing in the courts of admission and is not currently suspended or disbarred in any court; (4) the title of each court and action in which the applicant attorney has appeared pro hac vice in California in the prior two years; and (5) the name, address and phone number of the active California State Bar member with whom the applicant is associated. (Greene Application, ¶¶ 2-8.)

The Application has been served on the State Bar in San Francisco with payment of the applicable fees. (Fisher Decl., ¶¶ 3-5, Ex. A.)

Accordingly, the paperwork is in order and the Application is GRANTED.

RULING:

The Verified Application of J. Curtis Greene to Appear Pro Hac Vice is GRANTED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.